

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants.
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TO THE ABOVE-NAMED DEFENDANT(S):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates New York County as the place of trial. The basis of venue is pursuant to the CPLR 505(a), which provides that "[t]he place of trial of an action by or against a public authority constituted under the laws of the state shall be in the county in which the authority has its principal office or where it has facilities involved in the action."

Dated: White Plains, New York
October 15, 2024


HOWARD B. STOLZENBERG
STOLZENBERGCORTELLI, LLP

Attorneys for Plaintiff

JUSTIN SAPINI
305 Old Tarrytown Road
White Plains, New York 10603
(914) 361-4888

TO: **ANTHONY F. FERRARA**
12 Daisy Farm Drive
Brookfield, Connecticut 06804

METRO-NORTH COMMUTER RAILROAD
420 Lexington Avenue
New York, New York 10170



STOLZENBERGCORTELLI LLP
ATTORNEYS AT LAW

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

VERIFIED COMPLAINT

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Index No.:

Defendants.

-----X

Plaintiff, Justin Sapini, by and through his attorneys, STOLZENBERGCORTELLI, LLP, complaining of the defendants, Anthony F. Ferrara (hereinafter, "Ferrara") and Metro-North Commuter Railroad (hereinafter, "Metro-North"), respectfully alleges as follows:

INTRODUCTION

1. On April 23, 2023, Plaintiff Justin Sapini, while operating his motor vehicle, was involved in a collision with a vehicle operated by Defendant Anthony F. Ferrara, who, upon information and belief, is an employee of Metro-North and that the vehicle that Ferrara was operating was owned and maintained by Metro-North. The collision occurred in Westchester County. Plaintiff suffered a "serious injury" as a result of the collision. Defendants, therefore, are liable to Plaintiff for their negligence. This matter, previously dismissed, is renewed pursuant to CPLR 205.

THE PARTIES

2. Plaintiff was formerly a resident of 7 Valley Drive, Nanuet, County of Rockland and State of New York.

3. He is now a resident of Texas.

4. Upon information and belief, at all times hereinafter mentioned, MTA was and still is a public authority and existing under and by virtue of the laws of the State of New York.

5. MTA's principal office is located in New York County.



STOLZENBERGCORTELLI^{LLP}
ATTORNEYS AT LAW

17. At all times herein mentioned, on April 23, 2023, at approximately 8:30 a.m., Ferrara operated a certain 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023.
18. At all times herein mentioned, on April 23, 2023, at approximately 8:30 a.m., Ferrara maintained a certain 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023.
19. At all times herein mentioned, on April 23, 2023, at approximately 8:30 a.m., Ferrara managed a certain 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023.
20. At all times herein mentioned, on April 23, 2023, at approximately 8:30 a.m., Ferrara controlled a certain 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023.
21. That at all times hereinafter mentioned, and upon information and belief, on the date and time aforesaid, Ferrara operated the said 2019 Chevrolet utility vehicle with the permission, knowledge and consent of Metro-North.
22. At all times herein mentioned, on April 23, 2023, a certain 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023 contained badging that read "MTA Metro-North Railroad".
23. At all times herein mentioned, on April 23, 2023, a certain 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023 contained badging that read "We Aim High to Drove Safe" and "Call 1 800 773-1753" and "E2858D".
24. For the purposes of this Complaint, the term "the Defendants' Vehicle," unless otherwise noted, means the 2019 Chevrolet utility vehicle bearing State of Pennsylvania license plate number ZMP3277 for the year 2023.

THE COLLISION

25. That at all times herein mentioned, on April 23, 2023, at approximately 8:30 a.m., Plaintiff was the operator of a certain 2012 Volkswagen motor vehicle bearing New York State license plate number KYR1393 for the year 2023.

26. That at all times hereinafter mentioned, on April 23, 2023, Cedar Street at or near its intersection with Garden Street, City of New Rochelle, County of Westchester and State of New York, was and still is a public thoroughfare.

27. That at all times hereinafter mentioned, on April 23, 2023, at approximately 8:30 a.m., Ferrara operated Defendants' vehicle on Cedar Street at or near the intersection of Garden Street, City of New Rochelle, County of Westchester and State of New York. Ferrara was in the course of his employment, pulling into a Metro-North facility, when the collision occurred.

28. That at all times hereinafter mentioned, on April 23, 2023, at approximately 8:30 a.m., Plaintiff operated the his vehicle on Cedar Street at or near the intersection of Garden Street, City of New Rochelle, County of Westchester and State of New York.

29. That on April 23, 2023, at approximately 8:30 a.m., at the aforementioned location, immediately adjacent to a Metro-North facility, the Defendants' vehicle came into contact with the motor vehicle owned and operated by Plaintiff ("the Collision").

30. That as a result of the aforesaid collision, Plaintiff was seriously injured.

DEFENDANTS ARE LEGALLY RESPONSIBLE

31. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendants without any fault or negligence on the part of the Plaintiff contributing thereto.

32. That the serious and severe personal injuries sustained by the Plaintiff were occasioned solely and wholly through and by reason of the carelessness, recklessness and negligence of the defendants in the ownership, operation, management, maintenance and control of the within motor vehicle; in



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operating same without due regard to the rights and safety of the plaintiff; in failing to properly steer, guide, manage and control said motor vehicle; in carelessly and negligently merging into plaintiff's lane of travel without ensuring it was safe to do so; in carelessly and negligently operating the said motor vehicle over and along a public highway at a high and/or excessive rate of speed and/or at a greater rate of speed than care and caution would permit under the circumstances and conditions then and there existing to the knowledge of the defendants; in failing to maintain a safe and adequate distance from plaintiff's vehicle; in failing to apply the brakes or slow down or stop in such a manner as would have prevented the occurrence; in failing to make adequate and timely observation of and response to conditions; in failing to keep a proper look-out when controlling said motor vehicle; in carelessly and negligently disregarding traffic control devices in place at the scene of the occurrence then and there in effect; in failing to see plaintiff's vehicle; in driving into plaintiff's vehicle; in driving into traffic without ensuring that it was safe to do so; in operating said motor vehicle in violation of the traffic rules, regulations, statutes and ordinances; in failing to avoid a collision with the plaintiff; and the defendant, ANTHONY F. FERRARA, was otherwise careless and negligent in failing and omitting to take proper and suitable precautions to avoid the said occurrence. Defendant, METRO-NORTH COMMUTER RAILROAD, was further careless and reckless in the negligent entrustment of said motor vehicle to defendant, ANTHONY F. FERRARA.

33. In the alternative, Defendant Anthony Ferrara was not working at the time of this collision, but was on a break and thus this accident did not occur during the scope of his employment.

INJURIES

34. That by reason of the foregoing, Plaintiff sustained severe and permanent personal injuries, became sick, sore, lame and disabled; suffered injuries to his nervous system; suffered mental anguish, was confined to hospital, bed and home and may, in the future, be so confined; was incapacitated

from attending to his usual duties and vocation and may, in the future, be so incapacitated; will suffer a loss and/or limitation of quality and enjoyment of life; and Plaintiff was otherwise damaged.

35. That the said injuries sustained by Plaintiff were occasioned without any negligence or want of care on the part of Plaintiff in any manner contributing thereto.

36. That Plaintiff sustained serious injuries as defined in Subdivision D of §5102 of the Insurance Law of the State of New York.

37. That Plaintiff sustained serious injuries and economic loss greater than basic economic loss as to satisfy the exceptions of §5104 of the Insurance Law of the State of New York.

38. That Plaintiff is not seeking to recover any damages for which plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse plaintiff. Plaintiff is only seeking to recover those damages not recoverable through no-fault insurance under the facts and circumstances in this action.

JURISDICTION/CONDITIONS PRECEDENT

39. That this action falls within one or more of the exceptions as set forth in CPLR §1602.

40. That by reason of the foregoing, plaintiff, JUSTIN SAPINI, has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

41. That, pursuant to the Public Authorities Law, prior to commencing an action against Metro-North, Plaintiff is required to present his claim.¹ On September 10, 2024, Plaintiff served a

¹ By way of background, on February 1, 2024, Plaintiff started a prior lawsuit, naming the same defendants, but adding Metropolitan Transportation Authority (MTA), and making the same allegations. *See* Summns & Complnt., *Sapini v. MTA* (Index No. 150940/2024), ECF 1. Then, on multiple occasions, including February 20, 2024 and March 14, 2024, Plaintiff communicated with defendants, seeking to provide updates regarding the claims, and supplying medical records. Among this information, we provided a document we entitled "Presentation of Claim," which considered multiple records relevant to Plaintiff's liability and damages claims. *See* Ltr (dated 3/14/24), *Sapini v. MTA* (Index No. 150940/2024), ECF 22. Plaintiff learned after commencement of suit that MTA was not a proper party as it was advised that Ferrara was an employee of Metro-North. Then, on April 8, 2024, Plaintiff cross-moved for leave to amend the Complaint to (1) remove MTA from the caption and (2) add compliance with the Public Authorities Law. *See* Notice of Cross Mot (ECF 13). It should be noted that Public Authorities Law § 1276(1) provides that as a condition to an action against Metro-North for

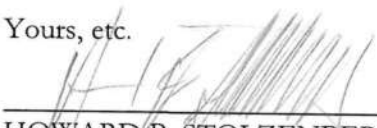


presentation of Plaintiff's claim upon defendants. Among other information exchanged, Plaintiff provided medical records (including a July 26, 2023 operative report) and advised that Plaintiff's medical treatment was ongoing that he was recommended to undergo a second shoulder surgery. Thirty has since elapsed since that presentation was made.

WHEREFORE, Plaintiff demands judgment against the defendants in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; along with such other and further relief as this Court deems just and proper.

DATED: White Plains, New York
October 15, 2024

Yours, etc.



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damages for personal injury or death, "the complaint shall contain an allegation that at least thirty days have elapsed since the demand, claim or claims upon which such action is founded were presented to a member of the authority or other officer designated for such purpose and that the authority has neglected or refused to make an adjustment or payment thereof." By Decision and Order (Tsai, J.), The Court denied the cross motion and dismissed the Complaint, noting Plaintiff's failure to provide the Presentation of Claim *before* starting suit. *See* Dec & Order (ECF #36). Once the Complaint was dismissed, by overnight mail dated September 10, 2024, Plaintiff served another Presentation of Claim. After waiting 30 days, Plaintiff then started this suit, pursuant to CPLR 205. This time, Plaintiff served the presentation of claim *prior* to filing suit. Thus, this action is within the statute of limitations and complies with all conditions precedent.



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STATE OF NEW YORK)
)SS.:
COUNTY OF WESTCHESTER)

I, HOWARD B. STOLZENBERG, an attorney admitted to practice in the Courts of the State of New York, say that:

I am a member of the firm of STOLZENBERGCORTELLI, LLP., the attorneys for plaintiff(s) in the within action;

I have read the annexed **COMPLAINT** and the same is true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters, I believe them to be true.

The reason I make this verification instead of plaintiff is that plaintiff resides outside of the county in which my office is located.

The sources of my information and the grounds for my belief are based upon correspondence and reports of investigation in the files of my firm. I affirm that the foregoing statements are true under the penalties of perjury.

Dated: White Plains, New York
October 29, 2024



HOWARD B. STOLZENBERG